

25NNCV08123 25NNCV08123

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-06-23

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Case Number: 25NNCV08123 Hearing Date: June 23, 2026 Dept: X

C. R., A MINOR BY AND THROUGH GUARDIAN AD LITEM, ROSIE.R. vs BRIGHTON HALL SCHOOL, INC.

DEFENDANT'S DEMURRER AND MOTION TO STRIKE

Defendant AMC Entertainment Holdings, Inc. ("AMC") demurs to the fourth cause of action (premises liability) and fifth cause of action (negligent security and monitoring) and moves to strike references to punitive damages in the second amended complaint.

The demurrer to the fifth and sixth causes of action is SUSTAINED with leave to amend. Defendant's motion to strike punitive damages is DENIED as moot.

There are no facts alleged against AMC regarding foreseeability of the sexual assault. Plaintiff argues in opposition that the SAC alleges that the assault continued, in plain view, for approximately 100 minutes, affording repeated opportunities for detection and intervention that AMC's absence of monitoring foreclosed. However, Plaintiff does not actually allege this happened in plain view or that any AMC employees viewed this. Further, Plaintiff has not alleged either heightened or lesser foreseeability of the sexual assault as to AMC. As both causes of action sound in negligence, Defendant's Demurrer is SUSTAINED in its entirety with leave to amend.

CASE MANAGEMENT CONFERENCE

On its own motion and given pending service as to several defendants, the Case Management Conference is continued to October 5, 2026 at 8:30 a.m. in Department X.